

24AHCV00046 24AHCV00046

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C08%2F07%2F2026

Source SHA-256: 2898e87727f7835ded7debe8ad53dfb605b5c11dac95f02147e6fe678abcafa4

Case Number: 24AHCV00046 Hearing Date: August 7, 2026 Dept: P

[TENTATIVE] ORDER GRANTING DEFENDANTS' MOTION FOR LEAVE TO CONDUCT A SECOND PHYSICAL EXAMINATION OF PLAINTIFF BRADLEY ERWIN

I. INTRODUCTION

This action arises out of an alleged slip-and-fall incident that occurred on January 9, 2022, at 3329 South Bristol Street in Santa Ana, California. Plaintiff Bradley Erwin ("Plaintiff") alleges that, while lawfully on the premises, he slipped and fell on an unknown liquid substance. Plaintiff claims that Defendants Trader Joe's, Excel Realty Partners and Excel Realty Partners, L.P., negligently owned, operated, and maintained the subject premises.

As a result of the incident, Plaintiff alleges he sustained serious injuries requiring medical treatment. On January 8, 2024, Plaintiff filed this action asserting causes of action for (1) premises liability and (2) general negligence. On October 24, 2025, Plaintiff filed a First Amended Complaint.

On July 14, 2026, Defendants Trader Joe's Company ("Defendants") filed the instant motion for leave to conduct a second physical examination of Plaintiff. Plaintiff filed a late opposition on July 29, 2026, and Defendant filed a reply on July 31, 2026.

II. LEGAL STANDARD

"Any party may obtain discovery . . . by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in any action in which the mental or physical condition . . . of that party or other person is in controversy in the action." (Code Civ. Proc., § 2032.020, subd. (a).)

In a personal injury action, the defendant may demand one physical examination of plaintiff as of right, without advance leave of the court. (Code Civ. Proc., § 2032.220.)

If a defendant seeks a further physical examination of plaintiff, or a mental examination, the defendant must first file a motion and "obtain leave of court." (Code Civ. Proc., § 2032.310, subd. (a).) Such a motion must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination." (Id., subd. (b).) The court may grant such a motion "only for good cause shown." (Id., § 2032.320, subd. (a).) A showing of good cause generally requires "that the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence." (Vinson v. Super. Ct. (1987) 43 Cal.3d 833, 840.)

The moving party must support the motion with a meet and confer declaration. (Code Civ. Proc., § 2032.310, subd. (b).) A meet and confer declaration must state facts "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

The examination will be limited to whatever condition is "in controversy" in the action.¿ (Code Civ. Proc., § 2032.020, subd. (a).) "An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination." (Code Civ. Proc., § 2032.320, subd. (d).) "The court is to describe in detail who will conduct the examination, where and when it will be conducted, the conditions, scope and nature of the examination, and the diagnostic tests and procedures to be employed. The way to describe these 'diagnostic tests and procedures'—fully and in detail—is to list them by name."¿(Carpenter v. Super. Ct. (2006) 141 Cal.App.4th 249, 260.)

III. ANALYSIS

Defendant moves for an order granting leave to conduct a second physical examination of Plaintiff Bradley Erwin, limited to a neurosurgical examination of Plaintiff's lumbar spine and related lower-extremity neurological complaints. Specifically, Defendant seeks an examination by Paul E. Kaloostian, M.D., FAANS, FACS, a board-certified neurological surgeon, to take place on August 11, 2026, at 1:30 p.m., at 960 E. Green Street, Suite 320, Pasadena, California. Defendant represents that the examination will be a standard, non-invasive clinical examination lasting no more than two hours, will not include any painful, protracted, or intrusive procedures, imaging, or invasive testing, and will be limited to Plaintiff's lumbar spine and related neurological complaints. The examination will consist of history taking, range of motion testing of the low back, motor, sensory, and reflex testing, gait testing, palpation of the low back, hips, and sacroiliac joints, and measurement of calf circumference. (Notice, p. 2.)

Code of Civil Procedure section 2032.310, subdivision (b), requires that a motion for an additional physical examination specify "the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination." Here, Defendant's motion identifies each of the required statutory particulars

Defendant contends good cause exists because Plaintiff's lumbar condition has materially changed since the initial orthopedic examination on November 20, 2024. Specifically, Defendant asserts that Plaintiff subsequently treated with two new spine surgeons, Drs. Kasra Rowshan and Wei Wu, who opined that the subject incident caused or aggravated Plaintiff's lumbar condition and recommended lumbar decompression surgery. Defendant further contends that Plaintiff underwent updated lumbar imaging, testified that lumbar surgery had been scheduled, and presented conflicting neurological findings in his subsequent treatment records. Defendant argues these post-examination developments materially expanded Plaintiff's lumbar surgical claim and warrant a limited neurosurgical examination. (Motion, pp. 2, 6-8; Reply, pp. 2, 4-7.)

Plaintiff opposes the motion, arguing Defendant has failed to establish good cause for a second physical examination. Plaintiff contends Defendant did not adequately meet and confer before filing the motion, as Defendant provided only four days to respond to its meet and confer letter before serving an examination demand and filing the instant motion. Plaintiff further argues the purportedly "new" developments are merely the progression of a lumbar and neurological injury that was disclosed before Defendant selected its orthopedic examiner for the first examination. According to Plaintiff, Defendant's preference for a different medical specialty does not constitute good cause for a second examination. Plaintiff also contends the requested examination is cumulative because Defendant already possesses Plaintiff's medical records, imaging, treating physician depositions, and the opinions of its retained orthopedic expert. (Opposition., pp. 2-6.)

As a preliminary matter, the Court exercises its discretion to consider Plaintiff's late-filed opposition. Plaintiff explains the delay resulted from an inadvertent calendaring error, and Defendant has not demonstrated any prejudice from the two-court-day delay, having filed a substantive reply addressing the merits of Plaintiff's opposition. Therefore, the Court considers the opposition.

The Court further finds Defendant has demonstrated good cause for a second physical examination under Code of Civil Procedure section 2032.320. Here, Defendant has shown that Plaintiff's post-examination treatment and expanded surgical claims raise issues that could not have been evaluated during the initial orthopedic examination, thereby establishing good cause for a limited additional examination. (See *Shapira v. Superior Court* (1990) 224 Cal.App.3d 1249, 1254-1256.)

Here, Defendant's initial orthopedic examination occurred on November 20, 2024. Since that examination, Plaintiff began treating with two additional spine surgeons who rendered new causation opinions and recommended materially broader lumbar surgical treatment, including decompression surgery with possible fusion. (Reply, p. 2.) Plaintiff also underwent updated lumbar imaging and testified that lumbar surgery had been scheduled. (Id.) These developments did not exist at the time of the November 2024 examination and materially expanded Plaintiff's lumbar surgical claim. Under these circumstances, Defendant is entitled to have a qualified physician evaluate Plaintiff's current condition and respond to these post-examination developments.

The Court also finds a neurosurgical examination appropriate. Because Plaintiff's post-examination treatment reflects expanded neurological findings and recommendations for neurosurgical intervention, Defendant has established good cause for an examination by a board-certified neurosurgeon.

Finally, Defendant has complied with the procedural requirements of Code of Civil Procedure section 2032.310, subdivision (b), by specifying the time, place, manner, conditions, scope, and nature of the proposed examination, as well as the identity and specialty of the examining physician.

Based on the foregoing, the Court GRANTS the motion for leave.

IV. CONCLUSION AND ORDER

The Court GRANTS Defendant's motion for leave to conduct a second physical examination of Plaintiff. Plaintiff shall appear for a neurosurgical examination to be performed by Paul E. Kaloostian, M.D., FAANS, FACS, a board-certified neurological surgeon. The examination shall take place on August 11, 2026, at 1:30 p.m., or on another mutually agreeable date before the discovery cutoff, at 960 E. Green Street, Suite 320, Pasadena, California 91106. The examination shall be limited to Plaintiff's lumbar spine and related lower-extremity neurological complaints and shall proceed in the manner, under the conditions, and within the scope set forth in Defendant's motion.

Defendant is ordered to give notice.

Dated: August 7, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT